

STATE OF NEW YORK

4279--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 3, 2025

Introduced by M. of A. BORES -- read once and referred to the Committee on Racing and Wagering -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the racing, pari-mutuel wagering and breeding law, in relation to prohibiting mobile sports wagering operators and platforms from sending push notifications or text message notifications

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "regulating
2 addictive notifications act".

3 § 2. Legislative intent. To address public health concerns involving
4 gambling addiction arising from the legalization of mobile sports
5 betting in New York, this legislation prevents New Yorkers from receiv-
6 ing push notifications that solicit wagers and deposits for wagers.
7 Research has shown that mobile sports betting increases the likelihood
8 of risky betting behavior, problem gambling, and addiction, driven by
9 the accessibility, privacy, and ease of use offered by mobile devices.

10 Mobile devices enable constant engagement with betting applications by
11 reducing barriers to responsible gambling and allowing users to instant-
12 ly act on gambling urges anytime and anywhere in the state. The risk is
13 greatest among young people, who typically spend more time on mobile
14 devices, and vulnerable populations.

15 Push notifications soliciting wagers and deposits may appear even when
16 mobile sports betting applications are closed. Such solicitation is more
17 invasive than traditional advertising and can exploit moments of vulner-
18 ability or weakness, undermining the ability of New Yorkers to gamble
19 deliberately and responsibly. Opting New Yorkers out of such unsolicited
20 gambling push notifications and solicitation is crucial to mitigate
21 harmful effects of risky betting, problem gambling, and addiction, which
22 can result in financial and occupational ruin, mental and emotional

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD08412-03-5

1 illness, the destruction of families, domestic violence, self-harm, and
2 suicide.

3 § 3. Subdivision 4 of section 1367-a of the racing, pari-mutuel wager-
4 ing and breeding law is amended by adding a new paragraph (k) to read as
5 follows:

6 (k) Mobile sports wagering operators and mobile sports wagering plat-
7 forms shall be prohibited from initiating or sending mobile device push
8 notifications or text message notifications, including alerts, relating
9 to the solicitation of sports wagers or deposits from a mobile sports
10 wagering operator's platform on which an authorized sports bettor may
11 place a sports wager. For the purposes of this paragraph, the term
12 "push notification" means an automatic electronic message displayed on
13 an account holder's device, when the user interface for the mobile
14 sports wagering operator's platform is not actively open or visible on
15 the device, that prompts the account holder to check or engage with such
16 platform.

17 § 4. This act shall take effect immediately.